

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4445 of 2017

Petitioner :- M/S Sahara India Commercial Corporation Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution & 4 Others

Counsel for Petitioner :- Shakti Swarup Nigam

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Mrs. Sunita Agarwal, J.

As lawyers have abstained from judicial work, no one is present in the Court, put up this matter as fresh on 31.7.2017.

Order Date :- 24.7.2017

Jyotsana

Court No. - 36

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Petitioner :- M/S Sahara India Commercial Corporation Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution & 4 Others

Counsel for Petitioner :- Shakti Swarup Nigam

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Mrs. Sunita Agarwal, J.

A prayer has been made for adjournment for today on behalf of Sri Shakti Swarup Nigam. Sri Kapil Dev Singh Rathore, learned counsel for respondent is present.

As prayed, put up this matter on 2nd August, 2017 in the additional cause list.

Order Date :- 31.7.2017

B.K./-

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4445 of 2017

Petitioner :- M/S Sahara India Commercial Corporation Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution &
4 Others

Counsel for Petitioner :- Shakti Swarup Nigam

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Mrs. Sunita Agarwal,J.

Put up this matter on 11.8.2017 in the additional cause list.

Order Date :- 2.8.2017

B.K./-

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4445 of 2017

Petitioner :- M/S Sahara India Commercial Corporation Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution & 4 Others

Counsel for Petitioner :- Shakti Swarup Nigam

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Mrs. Sunita Agarwal, J.

The order passed by the Court below under Section 80(2) of Code of Civil Procedure in Misc. Case No.302 of 2017 is under challenge whereby the Court below has refused to grant leave to the plaintiff to file the suit against the Executive Engineer, Electricity Urban Distribution Division-III, P.H.1, Mohaddipur, Gorakhpur. The leave has been refused on the ground that the auction has been concluded on 6.7.2017 i.e. the date of filing of the suit and as such there was no urgency in the matter, the suit cannot be allowed to be instituted without serving a proper notice under Section 80 of the Act.

Challenging this order, the contention of learned Counsel for the petitioner is that in fact there was no requirement of seeking leave of the Court under Section 80(2), as no notice under Section 80 of the Code of Civil Procedure was required to be given to the Executive Engineer, Electricity Urban Distribution Division-III, P.H.1, Mohaddipur, Gorakhpur, before filing of the suit.

Moreover, the Court below was required to look into the urgency in the matter and could not have entered into the merits of the relief sought by the petitioner. Reliance is place upon the judgment in the case of **Smt. Minakshi Patra Vs. Secretary Irrigation and Power, Govt. of Orissa & others**, reported in AIR 1999 Orissa 137.

Sri Kapil Dev Singh Rathore, learned Counsel appearing for respondent nos.1 and 2, on the other hand, submits that at the stage of disposal of application under Section 80(2), only urgency is to be seen by the Court below as to why leave be granted to institute the suit without service of notice under Section 80 of the Code of Civil Procedure. Submission is that such notice is a condition precedent for institution of the suit against the Government or its Public Officer and cannot be dispensed with unless and until an urgency is shown. Reliance is placed upon the judgment of Apex Court in **State of A.P. & others Vs. Pioneer Builders, A.P.** reported in (2006) 12 SCC 119.

Considering the submissions of learned Counsel for the parties and having perused the record, this Court finds that the suit against the Electricity Board/Executive Engineer, Electricity Urban Distribution Division-III, P.H.1, Mohaddipur, Gorakhpur was sought to be instituted with the relief that no recovery be made against the petitioner/plaintiff without making final assessment and preparation of bill of consumption. So far as the grievance of a consumer of electricity is concerned, under the provisions of Electricity Act, 2003 and the Electricity Supply Code, 2005, the remedy is provided to each consumer for filing any objection regarding the provisional

assessment made by the electricity authority. Section 126 and 127 of the Electricity Act provides complete remedy in this regard. Section 145 of the Act further specifically excludes the jurisdiction of Civil Court in a matter of assessment covered by Section 126 and 127 of the Act.

Considering these facts, this Court is of the view that even if there was an occasion for the Court below to grant permission, the suit sought to be filed by the petitioner itself was not maintainable.

The Apex Court in the case of **Surya Dev Rai Vs. Ram Chander Rai and Others reported in 2003 (6) SCC 675** has held that the supervisory jurisdiction under Article 227 of the Constitution of India shall not be used by the High Court ordinarily in every case of wrong order for error of law unless and until it is shown and proved that manifest injustice has caused to the party approaching the Court, the supervisory jurisdiction has to be used sparingly only in such matters demonstrative before the High Court.

For all the above noted reasons, this Court is not inclined to invoke the supervisory jurisdiction under Article 227 of the Constitution of India. The present petition is, accordingly, **dismissed**.

Order Date :- 11.8.2017
Savita